

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MATTHEW FARRELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE THOMAS JUREWICZ, Shield No: 1282, SERGEANT THOMAS GAMBARDELLA, POLICE OFFICER COFRESI, POLICE OFFICER PUIYOOK FENG, LIEUTENANT STEVEN McCOLE, SERGEANT ZHOU, and POLICE OFFICERS JOHN DOES #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 7, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Thomas Jurewicz, Shield No: 1282, 76th Precinct Detective Squad, 191 Union
Street, Brooklyn, New York 11231
Sergeant Thomas Gambardella, 76th Precinct Detective Squad, 191 Union Street,
Brooklyn, New York 11231
Police Officer Cofresi, Paid Detail Unit, 51 Chambers Street, 3rd Floor, New York, New
York 1007
Police Officer Puiyook Feng, 76th Precinct, 191 Union Street, Brooklyn, New York
11231
Lieutenant Steven McCole, 76th Precinct, 191 Union Street, Brooklyn, New York 11231
Sergeant Zhou, PSA #1, 2860 West 23rd Street, Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MATTHEW FARRELL,

Plaintiff,

-against-

INDEX NO.:

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, DETECTIVE THOMAS JUREWICZ, Shield No: 1282, SERGEANT THOMAS GAMBARDILLA, POLICE OFFICER COFRESI, POLICE OFFICER PUIYOOK FENG, LIEUTENANT STEVEN McCOLE, SERGEANT ZHOU, and POLICE OFFICERS JOHN DOES #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff MATTHEW FARRELL, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 5, 2013, at approximately 9:30 a.m. plaintiff Matthew Farrell was lawfully present at the New York City Police Department 76th precinct, located at 191 Union Street, Brooklyn, New York, when he was subjected to an unlawful seizure, false arrest, unlawful interrogation, and an illegal strip search by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers abused process and denied plaintiff the right to due process and the right to a fair trial pursuant to the Fifth Amendment to the Constitution of the United States. Plaintiff was unlawfully detained in New York City Department of Correction custody, mostly on Riker's Island, from September 5, 2013 through January 3, 2014. On May 9, 2014 all criminal charges against plaintiff, stemming from the September 5, 2013 arrest, were dismissed and terminated in plaintiff's favor. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully seized, falsely arrested, unlawfully interrogated, illegally strip searched, maliciously prosecuted, abused process, and denied plaintiff the right to due process and the right

to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Matthew Farrell is a resident of the state of New York.
3. Defendant Detective Thomas Jurewicz, Shield No: 1282, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant Detective Thomas Jurewicz, Shield No: 1282, is and was at all times relevant herein, assigned to the 76th Precinct Detective Squad.
5. Defendant Detective Thomas Jurewicz, Shield No: 1282 is being sued in his individual and official capacity.
6. Defendant Sergeant Thomas Gambardella, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant Sergeant Thomas Gambardella, is and was at all times relevant herein, assigned to the 76th Precinct Detective Squad.
8. Defendant Sergeant Thomas Gambardella is being sued in his individual and official capacity.
9. Defendant Police Officer Cofresi, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant Police Officer Cofresi, is and was at all times relevant herein, assigned to the Paid Detail Unit.
11. Defendant Police Officer Cofresi is being sued in his individual and official capacity.
12. Defendant Police Officer Puiyook Feng, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. Defendant Police Officer Puiyook Feng is and was at all times relevant herein, assigned to the 76th Precinct..
14. Defendant Police Officer Puiyook Feng is being sued in his individual and official capacity.
15. Defendant Lieutenant Steven McCole, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant Lieutenant Steven McCole, is and was at all times relevant herein, assigned to the 76th Precinct.

17. Defendant Lieutenant Steven McCole, is being sued in his individual and official capacity.

18. Defendant Sergeant Zhou, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant Sergeant Zhou, is and was at all times relevant herein, assigned to the PSA1 Precinct.

20. Defendant Sergeant Zhou, is being sued in his individual and official capacity.

21. Defendant New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendant Police Officers John Does #1-4 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. Defendant City of New York conducted a Hearing, pursuant to General Municipal Law 50-H on May 26, 2015.

28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. By way of background, on September 3, 2013 at approximately 11:50 p.m. an individual named Danakil B. Bekele appeared at the New York City Police Department's 76th Precinct stationhouse and filed a complaint with defendant Police Officer Cofresi alleging that almost one hour earlier on September 3, 2013 at approximately 11:00 p.m. a perpetrator who was unknown to Mr. Bekele followed Mr. Bekele inside of a New York City Housing Authority Building located at 413 Baltic Street, into the elevator and allegedly walked behind Mr. Bekele and stole \$14 from Mr. Bekele during a gunpoint robbery.

31. Upon information and belief, on September 3, 2013 the purported crime victim Danakil B. Bekele did not and could not identify plaintiff Matthew Farrell as the perpetrator of the robbery and the individually named defendant police officers verified that Mr. Bekele's filed a false complaint because a review of the police department's video footage of the alleged location of the robbery did not show a robbery occurring at the alleged location on that date.

32. In Fact, Danakil B. Bekele did not and does not know plaintiff Matthew Farrell, by face, name, or nickname, nor has he ever seen or spoken with plaintiff Matthew Farrell.

33. On September 4, 2013 the case was assigned to be investigated by defendant Detective Thomas Jurewicz.

34. Upon information and belief, it was very important to Detective Jurewicz to arrest somebody for allegedly committing the gunpoint robbery alleged by Mr. Bekele because making an arrest for such a serious crime would likely draw accolades from Detective Jurewicz's supervisors and could potentially lead to career advancement for the Detective in the NYPD.

35. Therefore, upon information and belief, Detective Jurewicz was extremely disappointed to learn the video footage of the location where the crime reportedly occurred proves that the purported crime could not have occurred at that time, place and location.

36. However, upon information and belief, instead of simply closing the investigation, Detective Jurewicz conducted a search of the NYPD databases to locate individuals living near the location of the alleged robbery and who had recently been released from jail, and Detective Jurewicz identified plaintiff Matthew Farrell as an individual who fit that description and whom Detective Jurewicz believed fit the profile of someone whom people would believe committed the alleged robbery if the victim identified him as the perpetrator.

37. Upon information and belief, on September 4, 2013 defendant Detective Jurewicz met with Mr. Burkel and made it clear to him that there was a strong possibility that he would be arrested and prosecuted for filing a false complaint with the police department unless Mr. Burkel provided Detective Jurewicz with the correct date when the robbery occurred and also identified the individual who committed the robbery.

38. Upon information and belief, Detective defendant Jurewicz then proceeded to strongly suggest to Mr. Burkel that the incident occurred on August 29, 2013, instead of September 3, 2013, the date previously alleged by Mr. Burkel and the date when Mr. Burkel filed the complaint about the robbery with the 76th Precinct. Conveniently for Detective Jurewicz, and Mr. Burkel, the video footage from August 29, 2013 of the location of the alleged robbery no longer existed and therefore it would not be possible for the NYPD to conclude that Mr. Burkel is fabricating his allegation that a robbery occurred that day.

39. Upon information and belief, defendant Detective Jurewicz also showed Mr. Burkel a photograph of plaintiff Matthew Farrell and suggested to Mr. Burkel that he recognized Matthew Farrell as an acquaintance and could identify plaintiff as the perpetrator who robbed him.

40. Upon information and belief, for fear that Detective Jurewicz would arrest him for filing a false complaint, Mr. Burkel caved in to the pressure placed on him by Detective Jurewicz and amended the alleged date of the robbery alleged in his complaint and identified plaintiff Matthew Farrell as the perpetrator of the robbery.

41. A review of the police paperwork filled out by defendants in this case, supports plaintiff's allegations against Detective Jurewicz, as it is clear from the paperwork that the complainant initially alleged that the robbery occurred on September 3, 2013 and that the perpetrator was an individual that he did not know and could not identify. Suddenly, after the case was assigned to Detective Jurewicz, without any acknowledgement in the police paperwork that the allegations made by the complainant changed, without explanation (a) the date of the alleged robbery changed from September 3, 2013 to August 29, 2013 and (b) Mr. Burkel's relationship to the alleged perpetrator of the robbery changed from him allegedly not knowing or being able to identify the perpetrator to identifying plaintiff Matthew Farrell as the perpetrator and claimant that he was friends/acquaintances with Matthew Farrell.

42. However, unbeknownst to Detective Jurewicz, the home address listed for plaintiff Matthew Farrell in the NYPD database and listed on Detective Jurewicz's DD5's was incorrect and outdated. In fact, plaintiff was released from jail not long before the alleged robbery occurred, and lived approximately 45 minutes away from the location of the alleged robbery, by train, since the date of his release. Additionally, plaintiff had not traveled anywhere near the neighborhood where the robbery allegedly occurred at any point in time since he was released from jail.

43. After Detective Jurewicz successfully convinced Mr. Burkel to identify plaintiff as the perpetrator of the robbery, on September 4, 2013 defendants issued an

Investigatory-Card that falsely claimed that they possessed probable cause to arrest plaintiff for committing the robbery of Mr. Burkel.

44. On September 4, 2013 plaintiff received notification that Detectives from the 76th Precinct Detective Squad wanted to speak with him. Mr. Farrell had no idea what the Detectives wanted to speak with him about and he was curious to find out. Therefore, on September 5, 2013 plaintiff called the Detective that was looking for him. The Detective asked plaintiff to come to the 76th Precinct, but refused to tell plaintiff what he wanted to talk about.

45. Plaintiff had not committed any crimes or violated any laws and the farthest thought from his mind regarding why the Detectives wanted to speak to him was that they wanted to arrest him.

46. Therefore, on September 5, 2013, plaintiff agreed to come to the 76th Precinct stationhouse to meet with the Detective.

47. Plaintiff arrived at the 76th Precinct stationhouse at approximately 9:30 a.m. on September 5, 2013.

48. The defendant Detective questioned plaintiff about the robbery after plaintiff arrived at the 76th Precinct stationhouse.

49. Thereafter, without probable cause or any legal justification defendants placed plaintiff under arrest for allegedly committing the alleged robbery of Mr. Burkel.

50. Plaintiff was unlawfully handcuffed and walked by defendants to a bathroom where defendants unlawfully strip searched plaintiff, without any legal justification to strip search him.

51. At no time did defendants have probable cause to suspect that plaintiff secreted an illegal substance, a weapon or contraband underneath his clothing or into a body cavity.

52. Defendants did not recover any illegal drugs, weapons or contraband from plaintiff's person or from his possession, custody or control as a result of the unlawful strip search.

53. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime on June 5, 2013.

54. Defendants were aware that they lacked probable cause to arrest plaintiff, but Detective Jurewicz ensured that plaintiff was arrested and prosecuted anyway because Detective Jurewicz believed that the arrest would be hailed by his supervisors and would lead to further career advancements within the NYPD.

55. At no time did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff.

56. Defendants unlawfully fingerprinted and photographed plaintiff while he was detained for approximately 6 hours at the 76th Precinct stationhouse. Plaintiff was detained in a filthy holding cell for a majority of the time he was detained at the 76th Precinct stationhouse.

57. The defendant police officers spoke to a different Assistant District Attorney ("ADA") at the Kings County District Attorney's Office and falsely claimed that plaintiff was identified as the perpetrator of an armed robbery by the crime victim and the defendant police officers withheld all information regarding how the purported crime victim changed his entire story about when the robbery occurred and who committed the robbery.

58. Importantly, the collateral objective defendant Detective Jurewicz had for ensuring that plaintiff was prosecuted was to that he believed that if he made an arrest for a violent felony and the individual was successfully prosecuted then it would be viewed favorably by the NYPD brass and open doors for further career advancement within the NYPD for the Detective.

59. On September 5, 2013 defendants transported plaintiff from the 76th Precinct to Kings County Central Booking where he was unlawfully detained for several additional hours.

60. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers defendants initiated a prosecution against plaintiff on September 5, 2013, and legal process against plaintiff was commenced when plaintiff was arraigned in Kings County Criminal Court and falsely charged with several felony crimes including Robbery, Grand Larceny, Menacing, Petit Larceny, Criminal Possession of Stolen Property, and Harassment.

61. On September 5, 2013, plaintiff was arraigned in Kings County Criminal Court, falsely charged with several felony and misdemeanor crimes the defendant officers lacked probable cause to accuse him of committing.

62. At arraignment, the Court set bail at \$3,500, plaintiff was unable to post bail and he was remanded into New York City Department of Corrections custody.

63. Additionally, plaintiff was served with Orders of Protection that ordered him to stay away from Mr. Burkel, even though plaintiff did not know Mr. Burkel, had never before seen Mr. Burkel and could not identify Mr. Burkel. Plaintiff constantly worried that he would unknowingly violate the unlawful orders of protection that he was required to abide by or face possible jail time.

64. Plaintiff was unlawfully detained in New York City Department of Correction custody and on Riker's Island from September 5, 2013 through January 3, 2014 at which time he was released on his own recognizance.

65. Plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff terminated in his favor and were dismissed on May 9, 2014.

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

73. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

79. Defendants lacked probable cause to search plaintiff.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

66. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful seizure, interrogation, strip search, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of the due process rights and right to a fair trial to plaintiff.

67. the unlawful seizure, interrogation, strip search, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of the due process rights and right to a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

68. Plaintiff incurred economic expenses that were proximately caused by plaintiff's unlawful detention at Riker's Island for approximately three months.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, illegally strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process, denied the right to due process and denied the right to a fair trial, all without probable cause and in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

FOURTH CAUSE OF ACTION

Unlawful Strip Search

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

86. As a result of the aforementioned conduct of defendants, plaintiff Bernard Miller to sustained injuries.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Malicious Prosecution

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

91. Defendants commenced and continued a criminal proceeding against plaintiff.

92. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

93. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

94. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Plaintiff's Right to Due Process and Right to Fair Trial

Pursuant to the Fifth And Fourteenth Amendments

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 96 with the same force and effect as if fully set forth herein.

98. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

99. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

100. In withholding/creating false evidence against plaintiff Matthew Farrell, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

101. As a result of the foregoing, plaintiff Matthew Farrell, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 103 with the same force and effect as if fully set forth herein.

105. Defendants issued legal process to place plaintiff Matthew Farrell under arrest.

106. Defendants arrested plaintiff Matthew Farrell in order to obtain a collateral objective outside the legitimate ends of the legal process.

107. Defendants acted with intent to do harm to plaintiff Matthew Farrell, without excuse or justification.

108. As a result of the foregoing, plaintiff Matthew Farrell sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

112. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

113. Defendants failed to intervene to prevent the unlawful conduct described herein.

114. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

117. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. Defendants owed a duty of care to plaintiff.

121. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting and battering plaintiff.

122. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

123. All of the foregoing occurred without any fault or provocation by plaintiff.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

125. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 124 with the same force and effect as if more fully set forth at length herein.

126. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly

intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Matthew Farrell. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

127. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

128. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

129. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Matthew Farrell demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 7, 2015

By: 

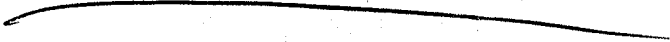
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 7, 2015



STUART E. JACOBS